

COMMISSION IMPLEMENTING DECISION

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COMMISSION IMPLEMENTING DECISION

of 13 August 2013

amending Decision 2011/207/EU establishing a specific control and inspection programme related to the recovery of bluefin tuna in the eastern Atlantic and the Mediterranean

(notified under document C(2013) 5224)

(2013/432/EU)

THE EUROPEAN COMMISSION,

Having regard to the Treaty on the Functioning of the European Union,

Having regard to Council Regulation (EC) No 1224/2009 of 20 November 2009 establishing a Community control system for ensuring compliance with the rules of the common fisheries policy (1), and in particular Article 95 thereof,

Whereas:

(1)

In 2006, the International Commission for the Conservation of the Atlantic Tunas (ICCAT) adopted a multiannual recovery plan for bluefin tuna in the eastern Atlantic and the Mediterranean. ICCAT amended that multiannual recovery plan during the 2008 Annual Meeting. The amended plan was transposed into Union Law by way of Council Regulation (EC) No 302/2009 of 6 April 2009 concerning a multiannual recovery plan for bluefin tuna in the eastern Atlantic and the Mediterranean (2). This plan was further amended and endorsed in the 2010 ICCAT Annual Meeting by way of ICCAT Recommendation 10-04 and transposed into Union Law by way of Regulation (EU) No 500/2012 of the European Parliament and of the Council of 13 June 2012 amending Council Regulation (EC) No 302/2009 concerning a multiannual recovery plan for bluefin tuna in the eastern Atlantic and Mediterranean (3).

(2)

To ensure the successful implementation of the amended recovery plan, Commission Decision 2009/296/EC (4) establishing a specific control and inspection programme covering a period of two years from 15 March 2009 to 15 March 2011 was adopted.

(3)

The specific control and inspection programme related to the recovery of bluefin tuna in the eastern Atlantic and the Mediterranean, as established by Commission Decision 2011/207/EU (5), was adopted with a view of ensuring the continuity of the programme established by Decision 2009/296/EC and immediately implementing certain provisions of ICCAT Recommendation 10-04. Decision 2011/207/EU covers the period 15 March 2011 to 15 March 2014.

(4)

In light of the discussions in ICCAT at the 2011 Annual Meeting and with a view to fully implement the provisions required by ICCAT, it was appropriate, in the absence of transposition of those requirements to EU Law, to amend Decision 2011/207/EU to implement the requirements concerning sampling and pilot operations set out in paragraph 87 of the ICCAT Recommendation 10-04 establishing a multiannual recovery plan for bluefin tuna in the eastern Atlantic and Mediterranean. Therefore, Commission Implementing Decision 2012/246/EU of 2 May 2012 amending Decision 2011/207/EU establishing a specific control and inspection programme related to the recovery of bluefin tuna in the eastern Atlantic and the Mediterranean (6) was published.

(5)

At its Annual Meeting in 2012, ICCAT adopted Recommendation 12-03 amending the multiannual recovery plan for bluefin tuna. With a view of ensuring the continuity of the programme established by Decision 2011/207/EU and immediately implementing certain provisions of ICCAT Recommendation 12-03 it is appropriate to update and correct certain obsolete or erroneous references that existed in Decision 2011/207/EU.

(6)

Decision 2011/207/EU should therefore be amended accordingly.

(7)

The measures provided for in this Decision are in accordance with the opinion of the Committee for Fisheries and Aquaculture,

HAS ADOPTED THIS DECISION:

Article 1

Decision 2011/207/EU is amended as follows:

(1)

Article 1 is replaced by the following:

‘Article 1

This Decision establishes a specific control and inspection programme in order to ensure the harmonised implementation of the multiannual recovery plan for bluefin tuna in the eastern Atlantic and the Mediterranean adopted by the International Commission for the Conservation of Atlantic Tunas (ICCAT) in 2006 as transposed by Regulation (EC) No 302/2009, further transposed into Union Law by way of Regulation (EU) No 500/2012 of the European Parliament and of the Council (7) and last amended by ICCAT Recommendation 12-03 of 10 December 2012.

(2)

in Article 3, point 2 is replaced by the following:

‘2.

all catches, landings, transfers, transshipments and caging operations, including implemented pilot studies on how better estimate both the number and weight of bluefin tuna at the point of capture and caging, including through the use of stereoscopic systems and the programme using stereoscopic cameras systems or alternative techniques that provide the equivalent precision, which shall cover 100 % of all caging operations in order to refine the number and weight of the fish in each caging operation;’;

(3)

Article 4 is amended as follows:

(a)

point 4 is replaced by the following:

‘4.

the implementation of any observer programme in the Union, including the Member States' observer programme, and the ICCAT Regional Observer Programme, as provided for by points 90, 91 and 92 and Annex 7 to ICCAT Recommendation 12-03;';

(b)

points 6, 7, 8, 9 and 10 are replaced by the following:

'6.

specific technical measures and conditions for fishing for bluefin tuna as provided in ICCAT Recommendation 12-03, in particular minimum size rules and associated conditions;

7.

quantitative restrictions on catches and any specific conditions associated therewith, including the monitoring of quota uptake, as provided for by ICCAT Recommendation 12-03;

8.

documentation rules applicable to bluefin tuna, as provided for by ICCAT Recommendation 12-03;

9.

the implementation of pilot studies on how to better estimate both the number and the weight of bluefin tuna at the point of capture and caging including through the use of stereoscalopic systems;

10.

the implementation of a programme using stereoscalopic cameras systems or alternative techniques that provide the equivalent precision, which shall cover 100 % of all caging operations in order to refine the number and weight of the fish in each caging operation.';

(4)

in Article 7, points 1 and 2 are replaced by the following:

'1.

the ICCAT Scheme of Joint International Inspection, as provided for by points 99, 100 and 101 and Annex 8 to ICCAT Recommendation 12-03;

2.

the methodology of inspection as provided for by ICCAT Recommendation 12-03, and in particular its Annex 8';

(5)

in Article 9, paragraph 1 is replaced by the following:

'1. Member State intending to conduct surveillance and inspect fishing vessels in the waters under the jurisdiction of another Member State in the framework of a Joint Deployment Plan shall notify its intentions to the contact point of the coastal Member State concerned, as referred to in Article 80, paragraph 5 of Regulation (EC) No 1224/2009 and to the EFCA.';

(6)

in Article 12, paragraph 1 is replaced by the following:

'1. The specific control and inspection programme shall be implemented through the national control action programmes, as referred to in Article 46 of Regulation (EC) No 1224/2009, adopted by Greece, Spain, France, Italy, Cyprus, Malta and Portugal, and as from 1 July 2013 by the national control action programme as adopted by Croatia.';

(7)

Article 15 is amended as follows:

(a)

paragraph 2 is replaced by the following:

‘2. Interim reports shall be communicated on 15 July and 15 September every year for the period until end of the previous month and a final report shall be communicated on 15 January, covering the previous year.’;

(b)

in paragraph 3(b), points (i) and (ii) are replaced by the following:

‘(i)

the fishing vessel (name, flag, gear and ICCAT number, Community fleet register number or external identification code), the trap, the farm or the enterprise engaged in the processing and/or trade of bluefin tuna products concerned;

(ii)

the date and the location of the inspection and the amount of the bluefin tuna related to the infringement;’;

(8)

Annexes I, II, III and IV are replaced by the text in the Annex to this Decision.

Article 2

This Decision is addressed to the Member States.

Done at Brussels, 13 August 2013.